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Submitter Information

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General Comment

Hello. Thank you for giving this opportunity for the public and especially creatives to give their thoughts and concerns on generative AI. As of now, it has felt like the only ones getting a say are AI tech companies. I am a motion graphics designer based in Arkansas. I have been a professional motion designer for 13 years, and primarily work in television, film, and advertising. I went to school for graphic design, and then a post-graduate program for character animation, both of which I loved. I make my living entirely off of my design and animation work, so I am very interested and concerned with the explosion of AI and the issues surrounding copyright, training data, and generated outputs. I post both professional and personal artwork routinely to the internet as this is how I find new clients and connect to other artists in my field. I have paused posting personal art since finding out about datasets and training for generative AI models. I am very confident that both my professional and personal artwork have been used to train models without my consent, credit or any form of compensation. Some of my designs took me weeks to make, and are the culmination of years of training and practice. A company being able to scrape those works, train a model on them, and release outputs that I then have to compete against in my market should be illegal. It feels as if we are being punished for sharing our own work, and trying to further our careers with the efforts of our past. If artists, writers, actors, and other creatives could have seen into the future, we would have all locked off our work and shared much less of ourselves. But AI seems to have popped up overnight, and there was no way to future proof for this kind of exploitation. Big tech AI companies are trying to move as fast as possible to normalize the mass appropriation of craft, labor and ingenuity. They are literally using the fruits of our labor as their secret sauce: a secret sauce they didn't get permission to use, and have no plan on compensating for. It feels like my past work has been stolen and weaponized against my future career.

AI companies are pushing the false narrative that AI models learn the same as humans, they don't. They don't have the same biological anatomy and limitations of humans, and they can't be inspired by art, because they don't understand the "why" of it, and do not appreciate it. They reduce the work to computational statistical patterns. These AI companies (OpenAI and Google) want to use the "Fair Use" defense, which in no way applies. Their very purpose is to statistically mimic the system/company/human that created the training data. They are without a doubt competing with and harming the original creators and rightsholders. My own income has been impacted since the release of AI image and video models. The market value of my work goes down with every model released that's trained on my, and my peers work.

These AI companies keep referring to an AI race with China as a reason to reduce copyright laws and protections for human creators. This makes no sense... This is just a ploy to use National Defense as an excuse for them to take creative works and turn them into commercial products. It has nothing to do with National Defense. Also China has routinely ruled in favor of creators over AI companies in terms of intellectual property and copyright. So OpenAI and Google's position on this is either outdated or incorrect. You can look up Hangzhou Internet Court's ruling on Generative AI and Copyright from earlier this year.

I have never had an issue with another artist viewing, and being inspired by my work. That's because they are human. They are not a large algorithm owned by a company reducing my work to data to create a product to compete against me in my market and eliminate the scarcity of my hard-earned skill. These companies (OpenAI and Google, to name a few) have released multiple models trying to monetize my labor with zero consent, credit, and compensation. They have offered broken olive branches to artists in the form of convoluted opt-out processes for their future models; notably absent is that you can't opt out of models that have already been released.

I ask that the OSTP and this administration do everything within its power to end this plagiarism and further protect creators' rights against generative AI. The creative industries, developers, architects, writers, artists and so on are a corner stone of the American dream. And they are a reliable and large part of our country's economy. So far AI companies are still searching for a profit/successful business model. It would be a dangerous risk to sacrifice the creative industry for a fragile and lawless AI venture, who's whole business model relies on breaking current laws and protections.

Thank you for hosting this survey and taking the time to read my comment. It is very much appreciated.